

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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FELIPE VARGAS,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER BRIAN FESTO, Tax No. 953857,
SERGEANT MICHAEL DICECCO, Tax No. 903799, and
POLICE OFFICER MOHSIN MOHSIN,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates RICHMOND
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
September 9, 2020

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER BRIAN FESTO, Tax No. 953857, Staten Island Gang Squad, One Police Plaza, Room 1100, NY, NY
SERGEANT MICHAEL DICECCO, Tax No. 903799, Staten Island Gang Squad, One Police Plaza, Room 1100, NY, NY
POLICE OFFICER MOHSIN MOHSIN, Staten Island Gang Squad, One Police Plaza, Room 1100, NY, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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FELIPE VARGAS,

Plaintiff,

-against-

POLICE OFFICER BRIAN FESTO, Tax No. 953857,
SERGEANT MICHAEL DICECCO, Tax No. 903799, and
POLICE OFFICER MOHSIN MOHSIN,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff FELIPE VARGAS, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On September 16, 2017, at approximately 5:30 p.m., plaintiff was lawfully in standing in the vicinity of 61 Thompson Street, Staten Island, New York when the individually named New York City police officer defendants, unlawfully stopped, questioned, frisked, searched, falsely imprisoned, unlawfully seized, and falsely arrested plaintiff. Thereafter, the officers maliciously prosecuted plaintiff and denied plaintiff a right to a fair trial by initiating a prosecution against him, without probable cause by falsifying evidence, providing false, misleading and/or incomplete information to the DA's Office and by signing a Criminal Court complaint which contained false information about plaintiff. Those officers that did not arrest plaintiff are liable for failing to intervene and stop the unlawful conduct against claimant that was being committed by their fellow officers. All criminal charges against plaintiff were dismissed and sealed on or about April 5, 2018. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, and denied plaintiff the right to a fair trial, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff FELIPE VARGAS is a resident of the state of New York.

3. POLICE OFFICER BRIAN FESTO, Tax No. 953857, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER BRIAN FESTO, Tax No. 953857, is and was at all times relevant herein, assigned to Staten Island Gang Squad.

5. POLICE OFFICER BRIAN FESTO, Tax No. 953857 is being sued in his individual and official capacity.

6. SERGEANT MICHAEL DICECCO, Tax No. 903799, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT MICHAEL DICECCO, Tax No. 903799, is and was at all times relevant herein, assigned to Staten Island Gang Squad.

8. SERGEANT MICHAEL DICECCO, Tax No. 903799 is being sued in his individual and official capacity.

9. POLICE OFFICER MOHSIN MOHSIN, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER MOHSIN MOHSIN, is and was at all times relevant herein, assigned to Staten Island Gang Squad.

11. POLICE OFFICER MOHSIN MOHSIN is being sued in his individual and official capacity.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On September 16, 2017, at approximately 5:30 p.m., plaintiff was lawfully in front of standing in the vicinity of 61 Thompson Street, Staten Island, New York, when the individually named New York City police officer defendants proceeded to unlawfully stop, question, frisk, seize and detain plaintiff without his consent, and without reasonable suspicion, probable cause, or any legal justification.

17. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

18. At no time was plaintiff in possession of any illegal drugs, weapons, or contraband of any kind on September 16, 2017, nor did the defendant police officers have an objective reason to believe plaintiff possessed illegal drugs, weapons, or contraband of any kind.

19. Nevertheless, the defendant police officers unlawfully stopped, questioned, frisked, searched, and handcuffed plaintiff and falsely arrested him without legal justification or probable cause.

20. The individually named police officers unlawfully searched plaintiff's person without probable cause or any legal justification and did not locate any illegal drugs, weapons or contraband as a result of the search.

21. Plaintiff was unlawfully handcuffed and arrested and transported to the 120th precinct by the defendant police officers.

22. Upon arrival at 120th precinct, the defendant police officers photographed, fingerprinted and placed plaintiff in a holding cell.

23. At no time did plaintiff resist being fingerprinted or photographed.

24. On or about September 17, 2017, plaintiff was transported from the 120th precinct to Staten Island Central Booking.

25. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendant police

officers in the criminal court complaint, defendants maliciously initiated a prosecution against plaintiff without probable cause, and as a result plaintiff was falsely charged with Criminal Possession of a Controlled Substance.

26. Specifically, the defendant police officers signed a criminal court complaint falsely stating that plaintiff was in possession of narcotics when in fact plaintiff did not possess any controlled substances.

27. On or about September 17, 2017, after approximately 24 hours in custody, plaintiff was arraigned in Staten Island Criminal Court and bail was set.

28. Plaintiff was unable to post bail and therefore was remanded to the custody of the Department of Correction.

29. On or about September 17, 2017, plaintiff was transported to the Brooklyn House of Detention.

30. On or about September 20, 2017, plaintiff was able to post bail and was released from custody.

31. Thereafter, plaintiff was forced to appear in Court on approximately four (4) occasions before all charges were dismissed and sealed upon motion of the District Attorney's Office on April 5, 2018.

32. As a result of the unlawful arrest and unlawful prosecution, plaintiff lost his job as a superintendant and therefore suffered lost wages in the amount of approximately \$80,000.

33. As a result of the unlawful arrest and unlawful prosecution, plaintiff was evicted from his apartment.

34. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and denial of fair trial and due process rights to plaintiff.

35. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of due process, denial of a fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, subjected to denial of his due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

40. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

43. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

46. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

47. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution

48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

49. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

50. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

53. Defendants lacked probable cause to search plaintiff.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

58. Plaintiff repeats and realleges paragraphs 1 through 57 as if fully set forth herein.

59. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

60. Defendants commenced and continued a criminal proceeding against plaintiff.

61. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

62. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

63. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

66. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 65 with the same force and effect as if fully set forth herein.

67. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Staten Island County District Attorney's Office.

68. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Staten Island County District Attorney's Office.

69. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Staten Island County District Attorney's Office.

70. In withholding/creating false evidence against plaintiff Felipe Vargas and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

71. As a result of the foregoing, plaintiff Felipe Vargas, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Failure to Intervene

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

77. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

80. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, plaintiff Felipe Vargas demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 9, 2020

By: /s/
STUART E. JACOBS
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER BRIAN FESTO, Tax No. 953857, Staten Island Gang Squad, One Police Plaza, Room 1100, NY, NY
SERGEANT MICHAEL DICECCO, Tax No. 903799, Staten Island Gang Squad, One Police Plaza, Room 1100, NY, NY
POLICE OFFICER MOHSIN MOHSIN, Staten Island Gang Squad, One Police Plaza, Room 1100, NY, NY

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 9, 2020

/s/
STUART E. JACOBS